

Mashooq Ahmad v. State of U.P. And 3 Others

Allahabad High Court · Division Bench · 17 April 2018 · Writ - C No. 17231 of 2017 · **Writ disposed of; petitioner relegated to the Consumer Grievance Redressal Forum under clause 7.10 against the Executive Engineer's 22.04.2017 order; Forum to decide preferably within six weeks if approached within 10 days**

HEADNOTE

After the Executive Engineer has decided a clause 6.5 representation, a consumer who still disputes actual consumption, meter reading and alleged procedural defects has a remedy before the Consumer Grievance Redressal Forum under clause 7.10 of the U.P. Electricity Supply Code, 2005. The writ court will not keep the petition pending to try those questions of fact. If the consumer approaches the Forum with a certified copy of the order within 10 days, the Forum shall endeavour to dispose of the complaint expeditiously, preferably within six weeks. Non-availing of a one-time settlement offer that waived surcharge does not alter that course. The writ is disposed of.

FACTUAL SUMMARY

Mashooq Ahmad petitioned the Allahabad High Court against the State of U.P. and electricity respondents over alleged excessive billing. He first applied under clause 6.5 of the U.P. Electricity Supply Code, 2005. When no decision was taken he filed Civil Misc. Writ Petition No. 6253 of 2017, which a Division Bench disposed of by directing the Executive Engineer to decide. The representation was then rejected (the 25.4.2017 order recites 27.03.2017; the final order recites 22.04.2017). He also approached the Ombudsman, who directed a check meter; the Executive Engineer found no defect, treated the bills as based on a correct meter reading, and added surcharge for default.

This writ challenged that order. On 25.04.2017 the Court recorded an OTS scheme then in force and listed the matter. The offer waived the entire surcharge if actual consumption charges were deposited; the petitioner did not accept it and continued to dispute post-2011 meter readings. The licensee submitted that after the check-meter result and the Executive Engineer's decision, no further writ relief lay.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::7.10

writ against Executive Engineer's clause 6.5 billing order — alternative remedy of CGRF

QUESTION

After the Executive Engineer has decided a clause 6.5 billing representation, may the consumer maintain a writ on disputed consumption and meter-reading facts, or is the remedy the Consumer Grievance Redressal Forum under clause 7.10?

HOLDING

The remedy is the Forum. Clause 7.10 of the U.P. Electricity Supply Code, 2005 affords a remedy against the Executive Engineer's order (here dated 22.04.2017). Where the consumer raises factual disputes about actual consumption of electricity and other procedural defects, the writ court will not interfere or keep the petition pending. If he approaches the Forum with a certified copy of this order within 10 days, the Forum shall endeavour to dispose of the matter expeditiously, preferably within six weeks. The writ was disposed of with those directions. ¶ 1

QUALIFIER

The petitioner had already been before the Ombudsman on a check-meter direction; the Executive Engineer found no defect. An OTS offer waiving surcharge if actual consumption charges were deposited was not accepted.

FLAG Multi-order eight-page PDF. Operative unnumbered order dated 17.4.2018 (Amreshwar Pratap Sahi and Shashi Kant, JJ.). Earlier pages: 25.4.2017 (Krishna Murari and Ravindra Nath Kakkar, JJ.) listing for an OTS decision to be

brought on record; 7.10.2017, 27.11.2017 and 6.12.2017 listing/adjournment. The 25.4.2017 order recites rejection dated 27.03.2017; the 17.4.2018 order refers to the Executive Engineer's order dated 22 April 2017 (typed '22th April'). No numbered paragraphs; paras keyed to the operative disposal.

PRINCIPLE TAGS

disputed-bill-relegated-to-cgrf-clause-7.10 The writ against the Executive Engineer's 22.04.2017 order on a disputed consumption/meter-reading bill was disposed of because clause 7.10 afforded a remedy before the Consumer Grievance Redressal Forum; the Court did not try those facts. ¶ 1

clause-7.10-forum-ombudsman-route-for-billing-grievances After a clause 6.5 decision by the Executive Engineer, the Court identified clause 7.10 as the route to the Consumer Grievance Redressal Forum for the surviving billing grievance, with a 10-day filing window and a preferred six-week disposal. ¶ 1

cgrf-7.10-alternate-remedy Article 226 was declined without prejudice to the petitioner approaching the Forum under clause 7.10 against the Executive Engineer's order. ¶ 1

disputed-questions-of-fact-not-adjudicable-under-article-226 The Court was not inclined to interfere or keep the writ pending because the petitioner was raising factual disputes about actual consumption and alleged procedural defects. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE POST-2011 CONSUMPTION CHARGES AND METER READINGS

Left to the Consumer Grievance Redressal Forum under clause 7.10 if approached within 10 days. ¶ 1

NOT DECIDED — WHETHER THE EXECUTIVE ENGINEER'S ORDER COMPLIED WITH CLAUSE 6.5

Raised on 25.4.2017 as the ground that the representation had not been considered in accordance with clause 6.5; the final Bench did not decide that point and relegated the consumer to clause 7.10. ¶ 1

NOT DECIDED — EFFECT OF THE OMBUDSMAN'S CHECK-METER DIRECTION AND THE FINDING OF NO DEFECT

Recited as the licensee's case; not examined on merits. ¶ 1

NOT DECIDED — ENTITLEMENT TO ONE-TIME SETTLEMENT BEYOND SURCHARGE WAIVER

The 25.4.2017 Bench had directed examination under the OTS scheme; the final Bench recorded that the offer waived surcharge if actual consumption charges were deposited and that the petitioner did not accept it, then disposed of the writ on clause 7.10 without deciding the OTS claim. ¶ 1